

THE FEDERAL MARITIME COMMISSION
800 North Capitol Street, NW, Washington, D.C.

D. F. YOUNG, INC.,
Complainant,
v.
NYK LINE (NORTH AMERICA) INC.,
Respondent.

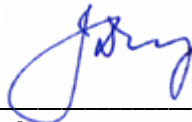
DOCKET NO. 16-02

**MOTION ON BEHALF OF BOTH
PARTIES TO EXTEND TIME FOR
OPPOSING AND REPLYING ON THEIR
MOTIONS FOR A SUMMARY DECISION**

1. **Movants:** The undersigned attorney for Respondent makes this motion on behalf of both parties.
2. **Relief Requested:** The parties ask that the December 6, 2016 Scheduling Order in this action be amended to extend by one week the deadlines for filing opposing and reply papers on their respective motions for a summary decision.
 - (a) Opposing papers are now due January 24, 2017. That deadline would be extended to January 31, 2017.
 - (b) Reply papers are now due January 31, 2017. That deadline would be extended to February 7, 2017.
3. **No Prior Extensions:** No prior extensions of the Scheduling Order deadlines have been granted or requested.
4. **Reasons for Request:** Both parties need the additional time to prepare their opposition papers, and submit that the one week time extension is of reasonable duration. If the January 24th deadline is extended, then the January 31st deadline should be extended as well so as not to eliminate reply time.

5. **Consent of Counsel:** These motion papers have been shown to Gabriel Major, Esq., one of the attorneys for Complainant, and he has approved them for filing.
6. Pursuant to 28 U.S.C. 1746(2) and 46 C.F.R. 502.6(c)(2), I declare under penalty of perjury that the foregoing is true and correct.

Dated: January 19, 2017

By: 

Joseph De May, Jr.
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**ORDER GRANTING MOTION ON
BEHALF OF BOTH PARTIES TO EXTEND
TIME FOR OPPOSING AND REPLYING
ON THEIR MOTIONS FOR A SUMMARY
DECISION**

Based upon the attached motion of Respondent, NYK LINE (NORTH AMERICA) INC.,
made on behalf of both parties, it is

ORDERED that the second paragraph of the December 6, 2016 Scheduling Order in
this action is amended as follows:

1. The date for serving and filing opposition papers to the parties' respective
motions for summary decision is extended by one week from January 24,
2017 to January 31, 2017; and
2. The date for serving reply papers on the parties' respective motions for
summary decision is extended by one week from January 31, 2017 to
February 7, 2017.

Dated: Washington, D.C., January __, 2017

Erin M. Wirth
Administrative Law Judge